

Amendment No. 1 to SB0392

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 392

House Bill No. 322*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-311, is amended by deleting "§§ 39-13-308 and 39-13-309" and substituting "§§ 39-13-308, 39-13-309, and 39-17-118".

SECTION 2. Tennessee Code Annotated, Section 39-13-314(a)(1), is amended by deleting the subdivision and substituting:

(1) "Human trafficking offense" means the commission of any act that constitutes the criminal offense of:

- (A) Involuntary labor servitude, under § 39-13-307;
- (B) Trafficking persons for forced labor or services, under § 39-13-308;
- (C) Trafficking for commercial sex act, under § 39-13-309;
- (D) Patronizing prostitution, under § 39-13-514(b)(3)(A);
- (E) Promoting prostitution, under § 39-13-515(c); or
- (F) Promoting the prostitution of a minor, under § 39-13-512; and

SECTION 3. Tennessee Code Annotated, Section 39-13-314(a), is amended by adding the following as a new subdivision:

() "Organization" means any of the following, whether foreign or domestic:

- (A) Limited liability companies;
- (B) Corporations;
- (C) Not-for-profit corporations;
- (D) Profit and not-for-profit unincorporated associations;
- (E) Business trusts;

- (F) Estates;
- (G) General partnerships;
- (H) Limited partnerships;
- (I) Registered or unregistered limited liability partnerships;
- (J) Trusts; or
- (K) Joint ventures;

SECTION 4. Tennessee Code Annotated, Section 39-13-314, is amended by adding the following as a new subsection:

(g) In addition to any other remedy, if the attorney general and reporter has reason to believe that any person or organization is committing, has committed, or is about to commit a human trafficking offense or aggravated human trafficking, then the attorney general and reporter may bring an action in the appropriate state court against the person or organization to:

- (1) Restrain the person's or organization's actions by temporary restraining order or temporary or permanent injunction;
- (2) Cancel, revoke, or terminate any certificate of formation, certificate of incorporation, articles of organization, trust instrument, certificate of authority to transact business, license, permit, approval, charter, or registration to transact business of the person or organization;
- (3) Appoint a receiver for the organization; or
- (4) Involuntarily dissolve the organization.

SECTION 5. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by adding the following as a new section:

39-17-118.

- (a) A person commits the offense of human smuggling who knowingly:
 - (1) Transports one (1) or more persons for the purpose of commercial advantage or private financial gain, with the intent to conceal the individual from

a law enforcement officer or a federal immigration officer, while knowing the person has illegally entered or remained in the United States, as determined by the bureau of immigration and customs enforcement of the United States department of homeland security; or

(2) Encourages or induces one (1) or more persons to enter or remain in this state in violation of federal law, as determined by the bureau of immigration and customs enforcement of the United States department of homeland security, by concealing, harboring, or shielding those persons from detection.

(b) Human smuggling is a Class E felony.

(c)

(1) A person commits aggravated human smuggling who commits the offense of human smuggling as prohibited by subsection (a), and the victim of the offense was less than thirteen (13) years of age at any time during the person's course of conduct.

(2) Aggravated human smuggling is a Class A felony.

SECTION 6. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by adding the following as a new section:

39-17-119.

(a) Except as provided in subsection (c), it is an offense for a person to harbor or hide, or to assist another in harboring or hiding, within this state an individual whom the person knows or should have known has illegally entered or remained in the United States, as determined by the bureau of immigration and customs enforcement of the United States department of homeland security.

(b) A violation of this section is a Class A misdemeanor, punishable only by a fine of one thousand dollars (\$1,000) for each person harbored or hidden.

(c) It is not a violation of subsection (a) for:

(1) An attorney licensed and admitted to the practice law in this state pursuant to title 23, chapter 1, to provide bona fide legal advice to an individual whom the attorney knows or should have known has illegally entered or remained in the United States, as determined by the bureau of immigration and customs enforcement of the United States department of homeland security; or

(2) A person to provide healthcare services or assistance to an individual presenting at a healthcare facility licensed under title 68 or title 33, or the office or other practice site of a healthcare provider licensed, registered, certified, or otherwise permitted to deliver healthcare services under title 63 or title 68, chapter 24.

SECTION 7. This act takes effect July 1, 2025, the public welfare requiring it, and applies to an offense committed on or after that date.